

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, AUGUST 06, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**ALYSSA R. v. FAIRFIELD SUISUN UNIFIED SCHOOL DISTRICT
Case No. CU23-00257**

Motion to Deem Admitted Matters Requests for Admission (Set Two)

TENTATIVE RULING:

Defendant's unopposed motion to deem Requests for Admission (Set Two) to be admitted is GRANTED.

Plaintiff ALYSSA R. is deemed to have admitted each of the requests for admission set forth in Defendant's Requests for Admission (Set Two (misnumbered set one)).

Defendant is awarded \$600 in reasonable attorneys' fees and costs as sanctions to be paid jointly and severally by Plaintiff and Plaintiff's counsel in 30 days.

Because discovery compliance continues to be an issue that is not resolved despite prior award of sanctions and court directives to meet and confer, Plaintiff and Plaintiff's counsel is on notice that future discovery violations may result in issue, evidentiary or terminating sanctions in addition to monetary sanctions.

Notably, the proof of service submitted by Defendant with the moving papers is not as clear as it could be. An updated declaration shall be immediately filed by Defendant confirming the motion was emailed to matt@procivilaw.com and whether it was additionally mailed by U.S. Mail to attorney Matt Harrison given only the box for email was checked and another person's email is directly provided. The court understands the proof of service for the motion included email service on matt@procivilaw.com. If

this understanding is incorrect, this order is void. In the future, please pay greater attention to the contents and clarity of your proof of service.

Additionally, it appears that a future case management conference date was not ordered on May 13, 2026. The parties are noticed that a case management conference two is scheduled for **October 15, 2026 at 8:30**. Updated CMC statements shall be filed 15 days in advance. The parties were previously ordered to submit a stipulated discovery schedule. Plaintiff is tasked with taking the lead and preparing a joint stipulated discovery schedule to be filed by September 21, 2026.

Prevailing party to prepare the order after hearing and submit directly to the court and is excused from complying with California Rules of Court, rule 3.1312.

BROWN v. FSL MAGNOLIA COURT, LLC, et al.
Case No. CU24-04807

Motion by Defendants to Strike Class Claims

TENTATIVE RULING

Defendants motion to strike the class claims is DENIED.

Defendant brings this motion pursuant to California Rules of Court, rule 3.767(a)(3) to challenge the ability of Plaintiff to serve as a representative in this action given that she has a separate suit alleging discrimination that has been removed to federal court.

CRC 3.1322(a) requires that a notice of motion to strike quote completely in numbered fashion the parts of the pleading the motion seeks to strike.

Contents of notice A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.

Defendants' notice does not quote any of the "class claims" the motion seeks to strike. It does not even identify the proper pleading from which it seeks to strike them (referring to the "Complaint", not the currently operative first amended complaint).

CRC §3.1322(b) requires a motion to strike to be made by the time of answer.

Timing A notice of motion to strike must be given within the time allowed to plead, and if a demurrer is interposed, concurrently therewith, and must be noticed for hearing and heard at the same time as the demurrer.

Defendants' answer was filed in September 2024, 21 months before this motion to strike was filed.

A motion for judgment on the pleadings can be filed after the time to respond to a pleading has passed, but only if it attacks an entire cause of action, not just parts of one. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §7:295, pp. 96-97.

To the extent that Defendant moves to challenge the class on the basis of inadequate representative pursuant to California Rules of court, rule 3.767, in general, courts decide adequate representation issues later in the case, on a motion by the plaintiff for certification of the class. (See, e.g., *Payton v. CSI Electrical Contractors, Inc.* (2018) 27 Cal.App.5th 832; *Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 440 [trial court retains discretion to hear merit based challenge to class action before or after class certification initiated].)

Pleading motions are also generally disfavored in class action cases, although in unusual circumstances they can be proper when the requirements for class certification are clearly not met by the plead allegations. (*Shaw v. Los Angeles Unified School Dist.* (2023) 95 Cal.App.5th 740, 760-761; see also *Canon U.S.A., Inc. v. Superior Court* (1990) 68 Cal.App.4th 1, 4-5 [trial court in an appropriate case can strike all class action allegations in an action filed in California seeking to certify a nationwide class when to do so would require the trial court to adjudicate issues by application of numerous different rules of law from the various states].)

There have been a few reported cases where a named plaintiff's assertion of both class action and individual claims in the *same* case were found at the class certification motion stage to make that plaintiff inadequate to serve as a proper class representative. *Payton, supra*, 27 Cal.App.5th 832; *De La Cueva v. Alta Dena Certified Dairy, LLC* (C.D.Cal. 2013) 2013 U.S.Dist.LEXIS 198734. Neither case is on point here. It is not an uncommon practice for an individual to bring a lawsuit alleging discrimination claims and to separately bring an individual and representative action alleging wage and hour claims.

In general, a conflict of interest must go to the very heart of the class action claim to serve as a ground for disqualifying a named plaintiff from being certified as a class representative.

"It is axiomatic that a putative representative cannot adequately protect the class if his interests are antagonistic to or in conflict with the objectives of those he purports to represent. But only a conflict that goes to the very subject matter of the litigation will defeat a party's claim of representative status. (*Richmond v. Dart Industries, Inc.* (1981) 29 Cal.3d 462, 470 [quoting 7 Wright & Miller, Federal Practice and Procedure (19720 Civil, §1768, pp. 638-639].)

In a situation where the individual claims are filed and/or pursued in a different case and court from the class action claims, the potential conflict of interest is decidedly more theoretical than concrete.

Thus, for both procedural defects and on the merits, the court denies this motion in its entirety.

TARA CRUZ v. CARVANA, LLC et al.
Case No. CU25-05498

GM's Demurrer to Second Amended Complaint

TENTATIVE RULING

The Court, on its own motion, continues the matter to August 14, 2026 at 9:00 a.m. in Department 8. Parties are reminded to check the tentative ruling system the day prior to the hearing.

CROWN ASSET MANAGEMENT v. WADE PRITCHARD
Case No. CU25-06184

Motion to Set Aside and Vacate Default and Default Judgment

TENTATIVE RULING:

Parties to appear. Moving party failed to include notice regarding the court's tentative ruling system as required by Local Rule 3.9 (d).

Defendant WADE PRITCHARD's motion to set aside or vacate the default and default judgment entered May 8, 2026, is GRANTED due to mistake, inadvertence or excusable neglect.

This suit was served on October 28, 2025.

PRITCHARD is reminded that if he is representing himself, he is held to the same standard as an attorney.

Defendant shall file a responsive pleading within 20 calendar days. Should PRITCHARD fail to do so, Plaintiff is directed to perfect a second default. The court will not be setting aside a second default.

DEMETRIO RINCON TORRES et al. v. UOB of VACAVILLE, LLC., et al
Case No. CU25-07125

Motion to Compel Arbitration and Stay or Dismiss Proceedings

TENTATIVE RULING:

Parties to appear.

In its previously posted TR, the court provided:

Plaintiff Rincon-Torres contends that he does not speak, read or write in English. He has signed his written assent to an agreement to arbitrate any claims related to his employment with Defendant UOB of VACAVILLE, LLC. ("UOB"). Plaintiff further contends that at the time of onboarding a representative for UOB spoke with him in Spanish but did not explain each of the terms of the arbitration agreement.

Defendant does not provide a declaration in response from any UOB representative or employee to contradict Plaintiff's allegations. However, Defendant does provide a page from a bold.pro website for Demetrio Rincon Torres from nearby Winters CA which is in English and identifies UOB as a prior employer and sets forth his prior employment qualifications and 9 year employment history as a cook and lead cook in North Dakota and California. This page is submitted via a request for judicial notice. The court takes no position on whether a request for judicial notice is an appropriate method to present a website page and neither party has briefed that legal issue.

As it does in all proposed complex cases, the court initially stayed discovery pending further case management orders. The court finds it is necessary that this stay be lifted for the limited purpose of allowing both parties to engage in discovery on the limited issue as to Plaintiff's ability to understand English, his ability to read and write in English, his exercise of English in the workplace, the scope of the communications and interpretation between Plaintiff and a UOB representative at the time of onboarding, and Plaintiff's involvement in the creation of the bold.pro website page. This limited discovery does not constitute a waiver of the right to compel arbitration. (See e.g. *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 412-413; *Bouton v. USAA Casualty Ins. Co.* (2008) 167 Cal.App.4th 412, 427; *Aronow v. Superior Court* (2022) 76 Cal.App.5th 865, 884; *Brown v. Wells Fargo Bank, NA* (2008) 168 Cal.App.4th 938, 951.)

The court retains the discretion to set a further evidentiary hearing, but prefers the matter to be decided on the pleadings and declarations.

The hearing is continued to **Thursday, July 30, 2026, at 8:30** to permit the parties the opportunity to engage in this limited and expedited discovery. Moving party may file and serve a supplemental pleading not to exceed 10 pages (inclusive of any attachments or declarations) on or before July 2, 2026. Responding party may file and serve a supplemental pleading not to exceed 10 pages (inclusive of any attachments or declarations) on or before July 17, 2026. Moving party may file and serve a reply not to exceed 5 pages (inclusive of any attachments or declarations) no later than July 21. Parties are reminded to consult the court's tentative ruling system on July 29, 2026, after 2:00 and to request oral argument and notify opposing counsel of the request by 4:00 p.m.

Subsequently, Defendant filed a motion to compel the further deposition of plaintiff alleging that plaintiff's counsel prevented defense counsel from inquiring as to Defendant's English language education, where he was born and how long he has been in the United States, his use of English in daily life, his use of English with third parties and other facts relevant to his ability to understand English. While a transcript from the deposition was requested by the court to verify the information, the described questions follow the court's directions and are consistent with the discovery the court authorized.

At the case management conference on July 30, 2026, the court exercised its discretion to conduct an evidentiary hearing on the limited issue of Plaintiff's ability to understand English, finding that the discovery conflict on this limited issue created unnecessary work and expense for the parties when the court as fact-finder could make the determination. The matter is set for a 1 hour evidentiary hearing.

The court additionally confirmed the hearing on the motion to compel arbitration to take place on August 6, 2026 at 9:00.

ADRIANNA PRICE-HICKS v. SOLANO COUNTY ET AL.
Case No. CU26-04956

Petition to Approve Minor's Compromise (Solano County)

TENTATIVE RULING:

This matter is continued on the court's own motion to permit Plaintiff to supplement the petition. Hearing is **continued to October 7, 2026, at 9:00 a.m.**

No treatment medical records are attached to the petition. See 10.b. A billing summary from Medi-Cal reflects 3 treatment contacts by Northbay Healthcare on 2/20/24 for the initial encounter and 2/26/24 for an additional encounter. Inexplicably a third entry described as an initial encounter is dated 6/5/24. The petition alleges treatment is not complete and the minor suffers from PTSD and anxiety but she does not appear to be seeking or receiving treatment for emotional distress?

It also seems that Solano County (including the Solano Sheriff's Department) is the only resolving defendant but that the California Highway Patrol is also named and has not been dismissed. Please explain. Is a motion for good faith settlement necessary? If CHP is dismissed, the court will understand a motion for good faith settlement is not required.

A supplemental pleading shall be filed no later than September 24, 2026. Please review the tentative hearing system on October 6, 2026.

Deon Issac, J.A., T.A. and N.C. et al. v. Northbay Healthcare Corporation
Case No. FCS059353

Plaintiff's Motion for Final Approval of Class Action Settlement

Plaintiff's Motion to be Relieved as Counsel

TENTATIVE RULING

Parties to appear.

Motion to Withdraw as Counsel for DEON ISAAC

The unopposed motions of class counsel law firms to be relieved as counsel for DEON ISAAC is GRANTED.

Additionally, the court finds that DEON ISAAC is no longer a proper representative for the class and intends to dismiss him from his representative status. Mr. Isaac's individual claims will be addressed in the same manner as any other class member.

Motion for Final Approval of Class Action Settlement

Plaintiffs J.A., T.A. and N.C. move for final approval of the settlement reached with Defendant NORTHBAY HEALTHCARE. The settlement concerns a class action involving alleged use of tracking tools on Defendant's websites or patient portals between November 29, 2020 and May 14, 2024 which may have resulted in disclosure of personal information or health information to a third party without authorization or consent.

The court has not received opposition to the motion.

In a class action the court has broad discretion to determine whether a settlement was fair and reasonable. In reviewing the fairness of a settlement due regard must be given to what is otherwise a private, consensual agreement between parties. Review for fairness is limited to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud, overreaching, or collusion and that the settlement as a whole is fair and reasonable to all concerned. Considering reasonableness means weighing factors such as the strength of the plaintiffs' case, the risk and expense of further litigation, the amount of settlement, the risk of maintaining class action status through trial, the experience of counsel, the presence of a governmental participant, and class members' opinions of the settlement. Fairness is presumed where a settlement is the product of arm's-length negotiation conducted after sufficient investigation and discovery to allow intelligent decisions, counsel is experienced in similar litigation, and the percentage of objectors is small. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1389.)

This court preliminarily approved the settlement on October 1, 2025.

The proposed class meets the requirements for numerosity, is ascertainable and has claims or defenses in common. The settlement class is comprised of approximately 36,038 individuals. 603 members did not have valid mailing or email addresses. Settlement administrator Simpluris estimates successful delivery by email or mail of

notice to identified class members of 97.44% of the class. Only 1160 or 3.225% of the class returned claims. No requests for exclusion or objection were received.

The settlement which provides one-year subscription to CyEx Privacy Shield Pro and cash payments of \$15.00 to each class member who submits a claim form is fair, reasonable, and not the product of fraud, overreach, or collusion where the settlement was reached after arm's-length mediation. Additionally, Defendant implemented a new data privacy and compliance platform which is designed to intercept and filter information obtained through tracking tools before data is sent to third parties. The retail value of the settlement is \$10,062,000 for the CyEx Privacy Shield Pro at a rate of \$24.99 per user and cash payment at a value of \$503,100. However, the actual value of the CyEx Privacy Shield Pro purchased at volume rate is \$15 and based on actual number of claims, cash payments totaled \$17,400.

The parties used experienced mediator Bruce A. Friedman, Esq.

Plaintiffs J.A., T.A. and N.C. appear to be appropriate representatives for the class. The court finds an enhancement award to the named plaintiffs of \$1,250 is reasonable.

In the motion for preliminary approval, the anticipated costs of the settlement administrator were \$22,000. In the final moving papers, the costs ballooned to \$43,168. Some of these additional expenses were attributed to renoticing which was caused by the failure of counsel to timely withdraw from representation of DEON ISAAC or address Mr. Isaac's status as a named plaintiff when his awol status was known at the time the motion for preliminary approval was filed. Plaintiff's counsel should be prepared to address how the class or defense should be required to bear an expense caused by Plaintiffs' counsel's administration of this case or whether this should be borne by Plaintiffs' counsel.

The parties agreed that the defense would pay no more than \$345,000 in attorneys fees and Defendant would not oppose a claim for this sum or less. Based upon the representations by counsel, the sum is less than 40% of attorneys' fees which they estimate would have been charged under a traditional lodestar analysis based upon 980 hours. \$345,000 divided by 980 hours results in a \$352/hour rate which is reasonable for experienced class counsel. The court would not find the rates claimed of \$839. \$925 or \$1141 per hour to be reasonable in this case, especially given issues that arose. Additionally, the court would have reduced hours based upon the number of attorneys who touched this file being excessive which creates unnecessary duplication of effort. But, given the actual sums agreed upon and the effective rate reduction, the award of \$345,000 at the rate of \$352/hour is reasonable and fair.

The settlement agreement does not address litigation expenses. In the preliminary motion, class counsel requested approval of "reasonable litigation expenses incurred" and anticipated advancing up to \$33,932.05 in costs. In its final motion, the sum requested is \$26,940.80 in costs. Defendant does not oppose this request. Insufficient support is provided to justify certain expenses and some expenses are claimed

inconsistently by the multiple law firms involved. The court disallows \$1054.90 for Almeida pro hac vice fees. Charges for research of \$613.01 are disallowed. Insufficient support is provided to justify claims for transportation and parking of \$73.60 and \$3,465.46 for "travel expenses." The court did not require personal appearances and most appearances were by Zoom and while attorney Almeida personally appeared, attorney Wise or the Peiffer Wolf firm did not appear in person. In the court's experience, most mediations are also conducted via Zoom. In terms of costs, these items are also not typical costs a court would traditionally award. (See CRC rule 3.1700(a).) With these exceptions, costs are approved in the sum of \$21,733.83.

The motion for final approval does not address distribution of any undistributed funds. During the hearing for preliminary approval, the court questioned why undistributed funds could not be used to extend any protections for the known class members by purchasing additional coverage from CyEx Privacy Shield Pro. It appears that plaintiffs might have attempted to file something with the court to address this issue on November 5, 2025, but the filing was rejected by the clerk as an exhibit by itself cannot be filed unless attached to a pleading. Parties to address.

Assuming final approval, hearing to confirm final performance and distribution of funds, including final disposition of any unclaimed funds, is set for **March 11, 2027, at 8:30 a.m.** A declaration confirming compliance, including negotiation and final disposition of the unclaimed proceeds, shall be filed 15 days prior to the hearing.

Plaintiff shall prepare the order after hearing and judgment incorporating Code of Civil Procedure section 664.6 which shall be approved as to form by defense counsel pursuant to Cal. Rules of Court, rule 3.1312(e) prior to submission to the court.

GEORGE LACSON VS. RAY BEYOND CORP, ET AL.
Case No. CU24-04909

Trial Management Conference

TENTATIVE RULING:

The court is in receipt of Plaintiff's 427 page trial management conference statement and Defendants' 1820 page trial management conference statement.

On the court's own motion, the trial management conference is continued to August 14, 2026 at 9:00 a.m. Remote appearances are DENIED. Bring original deposition transcripts to be lodged with the clerk.

Parties are to meet and confer regarding their motions in limine. In particular, where each party requests the court to exclude a particular opinion from an expert on a particular topic, please confirm whether that request for exclusion is agreed or opposed. (For example, a request to exclude opinion by Dr. Flavin as to accident reconstruction or biomechanical engineering seems unnecessary when she is not

offered for those purposes.) The TMC packets seek voluminous rulings from the court on matters that the parties should have narrowed through meet and confer.

The parties shall submit a list of joint exhibits and/or exhibits which they stipulate may be admitted into evidence with no further foundation no later than August 11, 2026. Please remove exhibits that you will not request to be admitted. Demonstrative exhibits do not need to be listed. Provide updated exhibit lists consistent with this direction.

Oppositions to motions in limine are due August 11, 2026 by noon with hand-delivered copies provided to Department 8 by 11:45 a.m.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002